



Notification Waiver Determination

CrowdStrike – intellectual property and associated technology assets of XM Cyber

Acquisition	CrowdStrike, Inc., a wholly owned subsidiary of CrowdStrike Holdings, Inc. (together with its subsidiaries, CrowdStrike), applied for a notification waiver in respect of its proposed acquisition of the intellectual property (including patents, trademarks, copyrights, trade secrets, domain names and source code) and associated technology assets of XM Cyber Ltd. (XM Cyber), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	19 August 2026

Parties to the Acquisition	The acquirer, CrowdStrike, is a U.S. publicly listed holding company, incorporated under the laws of Delaware and headquartered in Texas, USA. CrowdStrike Holdings, Inc.'s shares are listed on the Nasdaq stock exchange. CrowdStrike is active in cybersecurity services through its cloud-native Falcon platform, which provides protection for endpoints, cloud workloads, identities and data. CrowdStrike operates a software-as-a-service model, delivering its solutions via a unified cloud platform, and maintains a global presence with offices and operations across North America, Europe and Asia. CrowdStrike operates in Australia through its indirect wholly owned Australian subsidiary, CrowdStrike Australia Pty Ltd, with offices in Sydney. CrowdStrike offers a broad range of cybersecurity products and services, including endpoint detection and response, identity protection, cloud security, threat intelligence and managed security services. Its Falcon platform is used by a diverse customer base across industries such as finance, healthcare, retail and government, enabling real-time threat monitoring, prevention and incident response across distributed IT environments. The target, XM Cyber, including its subsidiaries, is an Israeli cybersecurity company. XM Cyber is currently an entity of the Schwarz Group. XM Cyber, specialises in continuous exposure management and attack path analysis solutions. In Australia, both CrowdStrike and XM Cyber supply enterprise security software. Schwarz Digits KG (Schwarz Digits), including its direct or indirect subsidiaries, is the digital and IT division of the Schwarz Group.
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	Schwarz Digits' core services include cloud, cyber security, data and AI, communication and Workspace for enterprise and public sector customers. Its offering mainly includes, among other things, a sovereign cloud solution through the STACKIT platform as well as other digital and AI-based services. Schwarz Digits is a global enterprise and will retain the infrastructure, personnel and capabilities to continue offering its digital services following the Acquisition.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition, given: a. the parties' combined share in the supply of enterprise security software (as well as specific segments within enterprise security software services) to customers in Australia is low and the increase in share of supply arising from the Acquisition would be small b. there are alternative global suppliers of enterprise security software to customers in Australia c. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act